

Harare Declaration: Declaration of the OAU Ad-hoc Committee on Southern Africa on the question of South Africa

21 August 1989 Harare, Zimbabwe

Preamble

1. The people of Africa, singly, collectively and acting through the OAU, are engaged in serious efforts to establish peace throughout the continent by ending all conflicts through negotiations based on the principle of justice and peace for all.
2. We reaffirm our conviction, which history confirms, that where colonial, racial and apartheid domination exists, there can neither be peace nor justice.
3. Accordingly, we reiterate that while the apartheid system in South Africa persists, the peoples of our continent as a whole cannot achieve the fundamental objectives of justice, human dignity and peace which are both crucial in themselves and fundamental to the stability and development of Africa.
4. With regard to the region of Southern Africa, the entire continent is vitally interested that the processes, in which it is involved, leading to the complete and genuine independence of Namibia, as well as peace in Angola and Mozambique, should succeed in the shortest possible time. Equally, Africa is deeply concerned that the destabilisation by South Africa of all the countries of the region, whether through direct aggression, sponsorship of surrogates, economic subversion and other means, should end immediately.
5. We recognise the reality that permanent peace and stability in Southern Africa can only be achieved when the system of apartheid in South Africa has been liquidated and South Africa transformed into a united, democratic and non-racial country. We therefore reiterate that all the necessary measures should be adopted now, to bring a speedy end to the apartheid system, in the interest of all the people of Southern Africa, our continent and the world at large.
6. We believe that, as a result of the liberation struggle and international pressure against apartheid, as well as global efforts to liquidate regional conflicts, possibilities exist for further movement towards the resolution of the problems facing the people of South Africa. For these possibilities to lead to fundamental change in South Africa, the Pretoria regime must abandon its abhorrent concepts and practices of racial domination and its record of failure to honour agreements all of which have already resulted in the loss of lives and the destruction of much property in the countries of Southern Africa.

7. We reaffirm our recognition of the rights of all peoples, including those of South Africa, to determine their own destiny, and to work out for themselves the institutions and the system of government under which they will, by general consent, live and work together to build a harmonious society. The Organisation of African Unity remains committed to do everything possible and necessary, to assist the people of South Africa, in such ways as the representatives of the oppressed may determine, to achieve this objective. We are certain that, arising from this duty to help end the criminal apartheid system, the rest of the world community is ready to extend similar assistance to the people of South Africa.
8. We make these commitments because we believe that all people are equal and have equal rights to human dignity and respect, regardless of colour, race, sex or creed. We believe that all men and women have the right and duty to participate in their own government, as equal members of society. No individual or group of individuals has any rights to govern others without their consent. The apartheid system violates all these fundamental and universal principles. Correctly characterised as a crime against humanity, it is responsible for the death of countless numbers of people in South Africa, resulting in untold loss of life, destruction of property and massive displacement of innocent men, women and children. This scourge and affront to humanity must be fought and eradicated in its totality.
9. We have therefore supported and continue to support all those in South Africa who pursue this noble objective through political, armed and other forms of struggle. We believe this to be our duty, carried out in the interest of all humanity.
10. While extending this support to those who strive for a non-racial and democratic society in South Africa, a point on which no compromise is possible, we have repeatedly expressed our preference for a solution arrived at by peaceful means. We know that the majority of the people of South Africa and their liberation movement, who have been compelled to take up arms, have also upheld this position for many decades and continue to do so.
11. The positions contained in this Declaration are consistent with and are a continuation of those elaborated in the Lusaka Manifesto, two decades ago. They take into account the changes that have taken place in South Africa since that Manifesto was adopted by the OAU and the rest of the international community. They constitute a new challenge to the Pretoria regime to join in the noble effort to end the apartheid system, an objective to which the OAU has been committed from its birth.
12. Consequently, we shall continue to do everything in our power to help intensify the liberation struggle and international pressure against the system of apartheid until this system is ended and South Africa is transformed into a united democratic and non-racial country, with justice and security for all its citizens.
13. In keeping with this solemn resolve, and responding to the wishes of the representatives of the majority of the people of South Africa, we publically pledge ourselves to the

positions contained hereunder. We are convinced that their implementation will lead to the speedy end of the apartheid system and therefore the opening of a new dawn of peace for all the peoples of Africa, in which racism, colonial domination and white minority rule on our continent would be abolished for ever.

II. STATEMENT OF PRINCIPLES

14. We believe that a conjuncture of circumstances exists which, if there is a demonstrable readiness on the part of the Pretoria regime to engage in negotiations genuinely and seriously, could create the possibility to end apartheid through negotiations. Such an eventuality would be an expression of the long-standing preference of the people of South Africa to arrive at a political settlement.
15. We would therefore encourage the people of South Africa, as part of their overall struggle, to get together to negotiate an end to the apartheid system and agree on all the measures that are necessary to transform their country into a non-racial democracy. We support the position held by the majority of the people of South Africa that these objectives and not the amendment or reform of the apartheid system, should be the aims of the negotiations.
16. We are at one with them that the outcome of such a process should be a new constitutional order based on the following principles, among others:
 - 16.1. South Africa shall become a united, democratic and non- racial state.
 - 16.2. All its people shall enjoy common and equal citizenship and nationality, regardless of race, colour, sex or creed.
 - 16.3. All its people shall have the right to participate in the government and administration of the country on the basis of a universal suffrage, exercised through one person one vote, under a common voters roll.
 - 16.4. All people have the right to form and join any political party of their choice, provided that this is not in the furtherance of racism.
 - 16.5. All shall enjoy universally recognised human rights, freedoms and civil liberties, protected under an entrenched Bill of Rights.
 - 16.6. South Africa shall have a new legal system which shall guarantee equality of all before the law.
 - 16.7. South Africa shall have an independent and non-racial judiciary.
 - 16.8. There shall be created an economic order which shall promote and advance the well-being of all South Africans.

16.9. A democratic South Africa shall respect the rights and sovereignty and territorial integrity of all countries and pursue a policy of peace, friendship and mutually beneficial co-operation with all people.

17. We believe that the agreement on the principles shall continue the foundation for an internationally acceptable solution which shall enable South Africa to take its rightful place as an equal partner among the African and world community of nations.

III. CLIMATE FOR NEGOTIATIONS

18. Together with the rest of the world, we believe that it is essential, before any negotiations take place, that the necessary climate for negotiations be created. The apartheid regime has the urgent responsibility to respond positively to this universally acclaimed demand and thus create this climate.

19. Accordingly, the present regime should, at the very least:

19.1. Release all political prisoners and detainees unconditionally and refrain from imposing any restrictions on them.

19.2. Lift all bans and restrictions on all proscribed and restricted organisations and people.

19.3. Remove all troops from the townships.

19.4. End the state of emergency and repeal all legislation, such as, and including, the Internal Security Act, designed to circumscribe political activity.

19.5. Cease all political executions.

20. These measures are necessary to produce the conditions in which free discussion can take place - an essential condition to ensure that the people themselves participate in the process of remaking their country. The measures listed above should therefore precede negotiations.

IV. GUIDELINES TO THE PROCESS OF NEGOTIATION

21. We support the view of the South African liberation movement that upon the creation of this climate, the process of negotiations should commence along the following lines:

21.1. Discussions should take place between the liberation movement and the South African regime to achieve the suspension of hostilities on both sides by agreeing to a mutually binding cease fire.

21.2. Negotiations should then proceed to establish the basis for the adoption of a new Constitution by agreeing on among, others, the Principles enunciated above.

21.3. Having agreed on these Principles, the parties should then negotiate the necessary mechanism for drawing up the new Constitution.

21.4. The parties shall define and agree on the role to be played by the international community in ensuring a successful transition to a democratic order.

21.5. The parties shall agree on the formation of an interim government to supervise the process of the drawing up and adoption of a new constitution; govern and administer the country, as well as effect the transition to a democratic order including the holding of the elections.

21.6. After the adoption of the new Constitution, all armed hostilities will be deemed to have formally terminated.

21.7. For its part, the international community would lift the sanctions that have been imposed against apartheid South Africa.

22. The new South Africa shall qualify for the membership of the Organisation of African Unity.

V. PROGRAMME OF ACTION

23. In pursuance of the objectives stated in this document, Organisation of African Unity hereby commits itself to:

23.1. Inform governments and inter-governmental organisations throughout the world, including the Non-Aligned Movement, the United Nations General Assembly, the Security Council, the Commonwealth and others of these perspectives, and solicit their support.

23.2. Mandate the OAU ad-hoc committee on Southern Africa, acting as the representative of the OAU, assisted by the Frontline States, to remain seized of the issue of a political resolution to the South Africa question.

23.3. Step up all-round support for the South African liberation movement and campaign in the rest of the world in pursuance of this objective.

23.4. Intensify the campaign for mandatory and comprehensive sanctions against apartheid South Africa; in this regard, immediately mobilise against the re-scheduling of Pretoria's foreign debts; work for the imposition of a mandatory oil embargo and the full observance by all countries of the arms embargo.

23.5. Ensure that the African continent does not relax existing measures for the total isolation of apartheid South Africa.

23.6. Continue to monitor the situation in Namibia and extend all necessary support to SWAPO in its struggle for a genuinely independent Namibia.

23.7. Extend such assistance as the Governments of Angola and Mozambique may request in order to secure peace for their people.

23.8. Render all possible assistance to the Frontline States to enable them to withstand Pretoria's campaign of aggression and destabilisation and enable them to continue to give their all-round support to the people of Namibia and South Africa.

24. We appeal to all people of goodwill throughout the world to support this Programme of Action as a necessary measure to secure the earliest liquidation of the apartheid system and the transformation of South Africa into a united, democratic and non-racial country.